

HOUSE No. 2194

The Commonwealth of Massachusetts

PRESENTED BY:

Donald R. Berthiaume, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act petitioning for an emergency restraint bill.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Donald R. Berthiaume, Jr.</i>	<i>5th Worcester</i>	<i>1/17/2025</i>
<i>Kelly W. Pease</i>	<i>4th Hampden</i>	<i>7/31/2025</i>

HOUSE No. 2194

By Representative Berthiaume of Spencer, a petition (accompanied by bill, House, No. 2194) of Donald R. Berthiaume, Jr., relative to emergency restraint and hospitalization. Mental Health, Substance Use and Recovery.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act petitioning for an emergency restraint bill.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Subsection (b) of section 12 of chapter 123 of the General Laws, as
2 appearing in the 2022 Official Edition, is hereby amended by inserting after the word “reception”
3 the first time it appears, the words:- “, unless the person has been arrested and detained and a
4 police officer has submitted a petition for hospitalization for such person under subsection (a)”